

12 September 2025 / mhn - mti



29534/ICA3

ELCOMPONICS HOLDINGS B.V. (The Netherlands) vs/ 1. INVICTUS GMBH (Austria)
2. INVICTUS CABLE GMBH (Austria) 3. INVICTUS HOLDING IC GMBH (Austria)

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Friederike Schäfer
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By email and ICC Case Connect

Dear Madame,

Pursuant to Article 16 of the ICC Rules of Arbitration (“Rules”), the Secretariat transmits the file to the arbitral tribunal. You can now access the case file via ICC Case Connect.

We invite you to read carefully the Case Information and Note to Parties and Arbitral Tribunals on the Conduct of the Arbitration under the ICC Rules of Arbitration (“Note”).

Terms of Reference

The Terms of Reference must be established within **30 days** from the transmission of the file to the arbitral tribunal (Article 23(2)).

We invite the arbitral tribunal to establish a list of issues to be determined or to expressly indicate in the Terms of Reference that such list is inappropriate (Article 23(1)(d)).

Subject to any requirements of mandatory law that may be applicable, and unless the parties agree otherwise, (1) the Terms of Reference may be signed by each party and member of the arbitral tribunal in counterparts, and (2) such counterparts may be scanned and communicated to the Secretariat pursuant to Article 3 by email or any other means of telecommunication that provides a record of the sending thereof. The Secretariat requires no hard copy of any electronic document which constitutes the original of the Terms of Reference.

Jurisdiction

Although Respondents 1 and 2 raised pleas pursuant to Article 6(3) of the Rules, Respondents 1 and 2 requested that a decision on such pleas be taken by the arbitral tribunal. You must therefore decide any question of jurisdiction or of whether the claims may be determined together, after providing the parties with an opportunity to comment.

International Chamber of Commerce | Chambre de Commerce Internationale (ICC)
Secretariat of ICC International Court of Arbitration | Secrétariat de la Cour Internationale d'Arbitrage

[iccwbo.org/arbitration](https://www.iccwbo.org/arbitration)

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Efficient Conduct of the Arbitration

The arbitral tribunal and the parties must make every effort to conduct the arbitration in an expeditious and cost-effective manner, having regard to the complexity and value of the dispute (Article 22(1)). The Note sets forth the time limits under the Rules that you must observe and relevant information concerning the conduct of the proceedings.

Appendix IV of the Rules contains suggested case management techniques. The Note also provides guidance on the organisation of conferences or hearings, including conducting such conferences and hearings by audioconference, videoconference, or other similar means of communication (see section “Conduct of the Arbitration” of the Note).

The state-of-the-art ICC Hearing Centre in Paris (France) offers unrivalled service excellence for your in-person, virtual and hybrid hearings and meetings. Parties and arbitral tribunals may contact the Secretariat for further information or visit the website at [The ICC Hearing Centre](#).

Please clarify with the parties whether they will pay directly the costs of any hearing, or whether such costs should be included in the expenses foreseen by the Court when fixing the advance on costs. If the hearing costs are to be covered by the advance on costs, please provide us with an estimate. Once the estimate is received, we will examine whether to reconsider the advance on costs of such costs to take into account hearing costs.

Time Spent

Pursuant to Article 2 of Appendix III, when fixing the arbitrators’ fees the Court may take into consideration, among other criteria, the time spent by arbitrators and the complexity of the dispute. To this end, the Secretariat will request from the arbitrators a periodical report on their activities, which should include a description of the tasks performed, an estimate of the amount of time spent on each of those tasks, and any other information related to those tasks that the arbitrators may deem relevant. For this purpose, we encourage arbitrators to use the Statement of Time and Travel for Work Done.

Submission of Draft Awards and Arbitral Tribunal’s Fees

The final award must be rendered within the time limit fixed by the Court based upon the procedural timetable or, if the Court does not fix such time limit, within six months from the date on which the Terms of Reference were last signed, or from the date of notification to the arbitral tribunal of their approval by the Court (Article 31(1)).

The Court expects sole arbitrators to submit draft awards within two months after the last substantive hearing on matters to be decided in the award or the filing of the last written submissions concerning such matters (excluding cost submissions), whichever is later (Article 27).

The Court may extend the time limit for rendering the final award pursuant to a reasoned request from the arbitral tribunal or on its own initiative if it decides it is necessary to do so (Article 31(2)).

While having the power to extend such time limit, the Court will consider the diligence and efficiency, the time spent, the rapidity of the proceedings, the complexity of the dispute and the timeliness of the submission of the draft award, when fixing the arbitral tribunal’s fees (Article 2(2) of Appendix III).

Wherever the arbitral tribunal has conducted the arbitration expeditiously, the Court may increase the arbitral tribunal’s fees above the amount that it would otherwise consider fixing. If the arbitral tribunal is delayed in rendering the final award, the Court may fix the fees at a figure

lower than that which would result from the application of the relevant scale should this be deemed necessary (Article 38(2)), as explained in the Note.

Pursuant to section “Signature of Terms of Reference and Awards – Notification of Awards” of the Note, and subject to any applicable mandatory law requirements, the arbitral tribunal is invited to clarify with the parties if they would agree to the notification of any award by email. If the parties agree to an electronic notification, this will be the only notification under the Rules and the electronic document will constitute the original of the award.

Publication of Information on the Website

Pursuant to section “Publication of Information Regarding Arbitral Tribunals, Industry Sector and Law Firms Involved” of the Note, the Court publishes on its website information regarding the names of the arbitrators, their nationality, their role within a tribunal and the method of their appointment, the parties’ representatives in the case, the industry sector involved and whether the arbitration is pending or closed. Such information is published after the Terms of Reference have been transmitted to or approved by the Court, or after the Case Management Conference in cases where the Expedited Procedure Provisions apply, and will be updated in the event of a change in the party representation (without however mentioning the reason for the change). In this respect, the Court publishes such information unless any of the parties objects.

In case of publication, *Manufacturing* will be indicated as the industry sector involved in this arbitration, unless we are otherwise advised by the arbitral tribunal within **15 days**. Only one option may be displayed on the website.

Publication of Awards

Pursuant to section “Publication of Awards, Procedural Orders, Dissenting and/or Concurring Opinions” of the Note, any award and/or order, as well as any dissenting and/or concurring opinion (“awards and related documents”) which may be made in the case, may be published in their entirety, including the names of the parties and the arbitrators, no less than two years after the date of said notification. Parties may agree to a longer or shorter time period for publication. Considering that awards and related documents may be published, arbitral tribunals are encouraged to include in their award a list of names of relevant individuals or entities involved in the case.

Parties and/or their representatives should consider the relevant applicable laws and establish whether any legal requirements or limitations may prevent the publication of awards and related documents, and inform the arbitral tribunal and the Secretariat accordingly. Any information in this regard available to the Secretariat will be communicated to the parties and the arbitral tribunal.

We note that a confidentiality agreement exists covering certain aspects of the contract. Unless we are informed of a subsequent agreement to the contrary, no award and related documents will be published.

Financial Information

We enclose a Financial Table.

ICC Case Connect

Your arbitration proceedings benefit from the International Court of Arbitration of the International Chamber of Commerce’s DRS case management digital platform.

Throughout the arbitration proceedings, parties and tribunals benefit from a dedicated case space to facilitate communications and document-sharing. ICC Case Connect will constitute

the Secretariat's principal means of communication throughout the proceedings (Article 3(2)), therefore case users should envisage that some interaction with the platform will be necessary.

If you have not yet created an ICC Case Connect account, you will shortly receive an ICC Case Connect notification email from "no-reply@iccwbo.org" inviting you to create your account. This is valid for 7 days and can be reactivated by contacting the ICC Case Connect helpdesk (caseconnect@iccwbo.org).

We invite the arbitral tribunal to discuss the use of ICC Case Connect with the parties early in the proceedings, for example at the case management conference. Although the arbitral tribunal remains free to determine the extent to which it utilises the platform, the Secretariat strongly encourages tribunals to correspond with the parties principally via ICC Case Connect. The parties should also be encouraged to upload their correspondence and submissions directly to ICC Case Connect.

Contact your case management team for assistance and the dedicated ICC Case Connect helpdesk (caseconnect@iccwbo.org) for technical support.

Communications

As from now, the parties should correspond directly with you and send copies of their correspondence to the other parties and to us. Please provide us with copies of all your correspondence with the parties in electronic format only. You are encouraged to use ICC Case Connect for communications and document-sharing.

Yours faithfully,



Hjördis Birna Hjartardóttir
Counsel
Secretariat of the ICC International Court of Arbitration

- encl. - Case Information
 - Financial Table
 - Checklist for a Protocol on Virtual Hearings and Suggested Clauses for Cyber-Protocols and Procedural Orders Dealing with the Organisation of Virtual Hearings ([click here to download it](#))
 - ICC Award Checklist
 - Statement of Time and Travel for Work Done ([click here to download it](#))

Enclosures available via ICC Case Connect:

- Case documents in the Case Documents tab
- Note to Parties and Arbitral Tribunals on the Conduct of the Arbitration under the ICC Rules of Arbitration
- Banking Instructions Form

c.c. *(with Case Information and Financial Table only)*

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